

**Superior Court of the State of California
County of Orange**

**Hon. ANDRE MANSSOURIAN
Department C12 – (657) 622-5212**

TENTATIVE RULINGS

Court will make every effort to post tentative rulings by approximately 3:00 p.m. the court day before the date the motion is to be heard.

If the parties agree to submit on the Court's tentative ruling, please call Department C12 directly to inform the court that **all parties** submit to the Court's tentative ruling.

Reminder: Court does NOT provide court reporters.

No filings or briefs of any kind will be accepted after the tentative ruling is posted.

Parties are welcome to be present in court for the law and motion calendar or appear by Zoom. To make an appearance via Zoom please click the following link. If you are unable to log in, please call the department for an alternative arrangement. <https://www.occourts.org/civil-remote-hearings>.

June 26, 2026

#	Case Name	Tentative
1.	Geng vs. Kingswood Law, P.C. 25-01505090	VACATED
2.	Persek vs. American Honda Motor Co., Inc. 24-01426452	Motion to Compel Deposition (Oral or Written) Plaintiff Erik Persek's Motion to Compel the Deposition of Defendant American Honda Motor Co., Inc.'s Person Most Qualified is GRANTED.

Plaintiff began requesting dates for Defendant's PMQ's deposition in October 2024. After Defendant failed to provide any proposed dates, on November 14, 2024, Plaintiff noticed the deposition of Defendant's PMQ with the deposition scheduled for December 4, 2024. (Agyeman Decl., ¶ 4; Exh. 2.) Plaintiff did not provide any alternative dates for the deposition.

On October 17, 2025, Plaintiff again noticed the deposition of Defendant's PMQ. (Agyeman Decl., ¶ 6; Exh. 3.) Defendant failed to appear for the deposition or provide any objection.

After more than a year of unsuccessful efforts to obtain Defendant's cooperation, Plaintiff re-noticed Defendant's PMQ deposition for January 30, 2026. (Agyeman Decl., ¶ 11; Exh. 6.) Defendant served written objections to the deposition notice but did not seek a protective order or other court relief excusing its appearance. (Agyeman Decl., ¶ 12; Exh. 8.)

Defendant's PMQ failed to appear at the deposition on January 30, 2026. Despite efforts to reschedule the deposition with defense counsel, no other dates have been provided. (Agyeman Decl., ¶¶ 14-16.)

Defendant has not opposed this motion or offered any explanation for non-compliance.

Accordingly, the unopposed motion to compel Plaintiff's deposition is GRANTED. (Code Civ. Proc., § 2025.450(a).)

Defendant's PMQ deposition shall take place by July 31, 2026, regarding the matters identified in Plaintiff's PMQ deposition notice.

The Court finds no substantial justification for Defendant's PMQ's failure to appear at the deposition or provide alternate dates for the deposition. Therefore, sanctions are justified.

"The amount of monetary sanctions is limited to the 'reasonable expenses, including attorney's fees' that a party incurred as a result of the discovery abuse." (*Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 79 (quoting Cal. Civ. Proc. Code § 2023.030(a)).

The court reduces Mr. Agyeman's hourly rate of \$545.80/hour to \$500/hour. Accordingly, the court orders sanctions in the total amount of \$2,750 (5.5 hrs x \$500/hr) against Defendant and its

		counsel of record. (Code Civ. Proc., § 2025.450(g).) Sanctions to be paid by July 31, 2026. Moving Party to give notice of this ruling.
3.	Mohareb vs. Kindred Hospital Brea 25-01536090	1. Motion to Compel Arbitration 2. Case Management Conference Defendants Kindred Hospital Brea; THC -Orange Count, LLC dba Kindred Hospital Brea; Kindred Healthcare Operating, LLC; and Kindred Healthcare, LLC’s Motion to Compel Arbitration is DENIED. “[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine <i>whether the agreement exists</i> and, if any defense to its enforcement is raised, whether it is enforceable.” (<i>Mitri v. Arnel Management Co.</i> (2007) 157 Cal.App.4th 1164, 1169; (Code Civ. Proc, § 1281.2.) “California contract law applies to determine whether the parties formed a valid agreement to arbitrate.” (Id. at 1170.)¹ “In determining the existence of an agreement to arbitrate, the trial court must employ a three-step burden shifting process. The party seeking to compel arbitration bears an initial burden to show an agreement to arbitrate; that burden can be met by providing a copy of the alleged agreement. If that initial burden is met, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence, thereby shifting the burden back to the arbitration proponent. At that point, and “[b]ecause the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence.” (<i>Garcia v. Stoneledge Furniture LLC</i> (2024) 102 Cal.App.5th 41, 51 [cleaned-up].) Here, Kindred Defendants submit the “Voluntary Alternative Dispute Resolution (ADR) Agreement” that was executed by Hanem Mohareb’s daughter, Plaintiff Iriny Ebid. In executing the ADR Agreement, Ms. Ebid certified her authority to consent on behalf of Ms. Mohareb to the terms of agreement. Under the ADR agreement, Ms. Ebid agreed on behalf of her mother that the ADR agreement “ ... covers any claim or action brought by a party other you (e.g. an action by your spouse, legal representative, agent, heir) arising out of relating to your hospitalization ... ”

By entering into the Voluntary ADR Agreement, Ms. Ebid agreed that any disputes with the hospital relating to her mother's medical care at Kindred Hospital Brea would be resolved by mediation preceding binding arbitration, not by filing a lawsuit. The ADR Agreement also presented that by opting for ADR, any such dispute relating to her mother's medical care would be decided without a jury, and Ms. Ebid agreed.

Kindred Defendants have met their initial burden in demonstrating the existence of an agreement to arbitrate. However, Plaintiff challenges the validity of such arbitration agreement.

No Actual or Ostensible Agency

Kindred Defendants argue that Ms. Ebid had the authority to execute the ADR Agreement on Ms. Mohareb's behalf without any evidence of a Power of Attorney or evidence that Ms. Ebid was acting as Ms. Mohareb's authorized agent.

Generally, a person who is not a party to an arbitration agreement is not bound by it. (Code Civ. Proc. § 1281.2.) "However, there are exceptions. For example, ... a person who is authorized to act as the [resident or] patient's agent can bind the [resident or] patient to an arbitration agreement." (*Rogers v. Roseville SH, LLC* (2022) 75 Cal.App.5th 1065, 1074.)

"An agent is one who represents another, called the principal, in dealings with third persons. Actual agency arises when the principal's conduct causes the agent reasonably to believe that the principal consents to the agent's act on behalf of the principal. Ostensible agency arises when the principal's conduct causes the third party reasonably to believe that the agent has the authority to act on the principal's behalf." (Ibid [citation modified].) "[A]n agency[, whether actual or ostensible,] cannot be created by the conduct of the agent alone; rather, conduct by the principal is essential to create the agency." (Ibid. [citation modified].)

"The party seeking to compel arbitration does not meet its burden of proving the existence of an arbitration agreement when it does not present any evidence that the purported principal's conduct caused the agent or the third party to believe that the agent had the authority to bind the principal." (Id. at 1075.)

Here, Kindred Defendants have presented no evidence that Ms. Mohareb did anything to lead Ms. Ebid to believe she had actual

authority to enter into an arbitration agreement on her behalf. Similarly, Kindred Defendants presented no evidence that Ms. Mohareb did anything to lead them to believe that Ms. Ebid had ostensible authority to do so. Instead, they argue Ms. Ebid had the authority to bind Ms. Mohareb based on the purported certification in the arbitration agreement that she was “authorized to act as Patient’s agent in executing and delivering on this Agreement. If signed by a Legal Representative, the representative certifies that the Facility may reasonably rely upon the validity and authority of the representative’s signature based upon actual, implied or apparent authority to execute this Agreement as granted by the patient.”

Courts, however, have consistently rejected this position in analogous contexts. (See *Valentine v. Plum Healthcare Group, LLC* (2019) 37 Cal.App.5th 1076 [the fact the plaintiff’s husband signed as his wife’s “representative” did not cast him the status of agent as there was no evidence the plaintiff designated her husband as her agent with authority to bind her, and no ostensible agency existed because the plaintiff did not reasonably cause defendants to believe the husband was authorized to execute the arbitration agreement for her.]; *Pagarigan v. Libby Care Center, Inc.* (2002) 99 Cal.App.4th 298, 301 [defendant did not prove actual or ostensible authority merely by presenting evidence that plaintiff’s daughter signed the arbitration agreement and thereby implicitly represented she had authority; any such representation is “totally irrelevant” because “[a] person cannot become the agent of another merely by representing herself as such.”].)

Ms. Ebid’s conduct alone cannot create an agency and there is no evidence that any conduct on Ms. Mohareb part justified a belief by Kindred Defendants that Ms. Ebid had the authority to sign the arbitration agreement on Ms. Mohareb’s behalf. Therefore, Kindred Defendants have failed to prove the existence of a valid agreement to arbitration.

Accordingly, the motion to compel arbitration is DENIED.

The Case Management Conference is CONTINUED to January 21, 2027, at 9:30 a.m. in Department C12.

Moving Party to give notice of this ruling.

4.	Gallagher vs. Razavi 25-01522835	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Answers to Special Interrogatories 3. Motion to Compel Production Plaintiff Janell Gallagher’s motion to compel further responses to her first sets of requests for production, form interrogatories, and special interrogatories is GRANTED IN PART and DENIED IN PART, as follows. (See Code Civ. Proc., §§ 2030.300, 2031.310.) Defendant Dr. Mahmood Razavi is ORDERED to provide verified further responses without objections to the following discovery requests, which shall include the simultaneous production of any and all responsive documents, within 45 days of notice: (1) Plaintiff’s first set of requests for production, Nos. 6, 9, and 24; (2) Plaintiff’s first set of form interrogatories, Nos. 2.3, 2.11-2.13, 4.1, 4.2, 12.1-12.7, 13.1, 14.2, 16.1-16.6, 16.9, and 16.10; and (3) Plaintiff’s first set of special interrogatories, Nos. 2, 5, 23, and 25. Sanctions are GRANTED in the total amount of \$5,050 in favor of plaintiff and against defendant, payable within 45 days. (See Code Civ. Proc., §§ 2030.300, subd. (d), 2031.310, subd. (h).) The motion is otherwise DENIED. <u>RFPs at issue.</u> The requests for production (RFP) at issue are Nos. 1, 2, 4, 6-10, 13, 15, 17-19, 22-24, and 28. <u>RFP Nos. 6, 9, 24.</u> Defendant’s responses to RFP Nos. 6, 9, and 24 are deficient and incomplete. Defendant admits his response to RFP No. 6 does not include certain responsive documents including, inter alia, a demand letter from plaintiff that he acknowledges exists. (See Opp. Sep. Stmt. at p. 9.) “[A] party has a general duty to conduct a reasonable investigation to obtain responsive information ... and must furnish information from all sources under his or her control.” (<i>Regency Health Services, Inc. v. Superior Court</i> (1998) 64 Cal.App.4th 1496, 1504.) Defendant’s response to RFP No. 9 fails to comply with Code of Civil Procedure section 2031.230; it does not state whether the requested documents “[have] never existed, [have] been destroyed, [have] been lost, misplaced, or stolen, or [have] never been, or is no longer, in the possession, custody, or control of the responding party,” and further
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fails to “set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (*Ibid.*)

Defendant’s response to RFP No. 24 is woefully insufficient. RFP No. 24 seeks all documents “from [defendant’s] personal devices (including but not limited to cell phones, tablets, and computers) relating to [plaintiff] or the February 17, 2024, incident.” Defendant responded to this request by effectively objecting on the ground of ambiguity, stating he “does not understand what documents are being sought.” (Opp. Sep. Stmt. at p. 25.)

The objection fails as there is nothing confusing about this request. (See *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783 [a request must be answered if the nature of the information sought is apparent].)

Furthermore, defendant has waived any such objection by failing to serve timely responses to the subject discovery requests, including the subject RFPs. Plaintiff properly served the discovery requests on defendant himself (rather than on his current counsel) on 12/10/25, as defendant had not yet appeared in this action and did not yet have an attorney of record at that time. Plaintiff was not required to serve defendant through his attorney until he appeared in this action through counsel, which was not until he filed his answer to complaint on 12/29/25. (See Code Civ. Proc., § 1015; Cal. Rules of Court, rule 1.21(a) [service upon a represented party must be to the party’s attorney]; see also *id.*, rule 1.6(15) [“party” means a “a person appearing in an action”].) Responses were originally due within 30 days of 12/10/25, as extended by the manner of service. (See Code Civ. Proc., §§ 2030.260, subd. (a) [responses due 30 days after service of interrogatories], 2031.260, subd. (a) [same for requests for production]; see also *id.*, §§ 2013, 2016.050 [section 1013 applies to any method of discovery].) The proofs of service of the subject discovery requests indicate they were served via “Federal Express,” without any indication as to whether plaintiff used a method providing for overnight or next-day delivery. (See Spiegel Decl. at Exs. 2-4 [attached proofs of service].) As such, the time to provide responses was extended by the default rule of five days, placing the initial due date on Wednesday 1/14/26. (See *id.*, § 1013, subd. (a) [mail service extends the time to act by five days, and “[t]his extension applies in the absence of a specific exception provided for by this section or other statute or rule of court”].) The parties later agreed to a “14-day discovery extension in which to provide verified responses to Plaintiff’s discovery, sets 1” (Spiegel Decl. at Ex. 6 [1/9/26 emails]), ultimately making defendant’s responses to the subject discovery due by no later than Wednesday 1/28/26. Defendant did not serve his

responses until 1/30/26, rendering them untimely. (See Spiegel Decl. ¶¶ 6-7, Ex. 7.) Defendant has therefore waived all objections, including those based on privilege or work product, by failing to timely respond. (Code Civ. Proc., §§ 2030.290, subd. (a) [interrogatories], 2031.300, subd. (a) [requests for production].)

As for the parties' agreement to a third-party forensic examination of defendant's cellphone for responsive documents, the court commends counsel for reaching an immensely reasonable, mutually agreeable solution. As it currently stands, however, defendant's response to RFP No. 24 does not state defendant will comply with the demand in this manner and makes no mention of the forensic examination or agreement. Further, RFP No. 24 seeks responsive documents from all of defendant's "personal devices," "including but not limited to cell phones, *tablets, and computers....*" The parties' agreement only covers defendant's cellphone; there is no response as to any responsive documents from defendant's other personal devices (or the cloud). Therefore, the forensic examination of defendant's cellphone does not address the entirety of this demand.

To be clear, the Court is not ruling that defendant must submit to a forensic inspection of his tablets, computers, or other similar "personal devices" at this time. Plaintiff has not in fact demanded such an inspection. What RFP No. 24 seeks is "documents" as defined in the subject request, not an "inspection" of any tangible thing. Although defendant has voluntarily agreed to allow a forensic examination of his cellphone for documents responsive to this request (see Spiegel Reply Decl. ¶ 3, Ex. A), this does not mean he has agreed to the same with respect to any other device. A request to inspect devices may theoretically be appropriate in this case, but plaintiff has not yet propounded such a request.

RFP Nos. 1, 2, 19. Defendant's responses to RFP Nos. 1, 2, 19, are complete and Code-compliant. (See Code Civ. Proc., §§ 2031.220, 2031.230.) The court cannot compel production of documents that defendant swears under penalty of perjury do not exist. (See *Holguin v. Superior Court* (1972) 22 Cal.App.3d 812, 820.)

All remaining RFPs at issue. Plaintiff has failed to show good cause for the discovery sought by RFP Nos. 4, 7-8, 10, 13, 15, 17, 18, 22-23, and 28. (See Code Civ. Proc., § 2031.310, subd. (b)(1) [good cause requirement]; *Glenfed Develop. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117 [good cause]; *Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 224 [motion must be supported by factual evidence by way of declarations setting forth

		specific facts justifying each category of materials sought to be produced]; see also Spiegel Decl., in passim.) <u>Form interrogatories.</u> Contrary to defendant’s contentions, defendant’s responses to the subject form interrogatories at issue effectively are objections on the grounds that they assume facts not in evidence, namely, “that [the] ‘INCIDENT’ took place.” (See Pl. Sep. Stmt., pp. 19-49; see also Spiegel Decl. at Ex. 11 [responses to form interrogatories].) As discussed above, defendant has waived any such objection by failing to serve timely responses, and there is no objection to an interrogatory on the ground that it assumes facts in any event. (See <i>West Pico Furniture Co. of Los Angeles v. Superior Court</i> (1961) 56 Cal.2d 407, 421; see Code Civ. Proc., § 2030.010.) Moreover, the objection would lack merit because the form interrogatories specifically define the term “INCIDENT” to mean “the circumstances and events surrounding the alleged accident, injury, or other occurrence ... giving rise to this action or proceeding.” (Spiegel Decl. at Ex. 4 [form interrogatories § 4(a)(1)].) Some of defendant’s responses to the subject form interrogatories also fail to answer the call of the question (for example, defendant’s responses to Form Interrogatory Nos. 2.11, 12.1-12.6, among others). (See <i>Deyo, supra</i>, 84 Cal.App.3d at p. 783 [“deftly worded conclusionary answers designed to evade a series of explicit questions” are improper].) <u>Special interrogatories.</u> Defendant’s responses to the subject special interrogatories are not complete and to this Court, fail to fully answer the call of these questions. (See <i>Regency Health Services, supra</i>, 64 Cal.App.4th at p. 1504 [duty to conduct a reasonable investigation to obtain responsive information and furnish information from all sources under his or her control]; <i>Deyo, supra</i>, 84 Cal.App.3d at p. 783.) Plaintiff shall give notice.
5.	Kennedy vs. Emanuel 22-01248389	Motion to Seal Plaintiffs Drake Kennedy and Stephanie Kennedy’s Motion to Seal is DENIED. (Cal. Rules of Court, Rule 2.550.) In this situation, Plaintiffs have not made a sufficient factual showing of an overriding interest that supports sealing the records. (Cal Rules of Court, Rule 2.550, subd. (d).) It appears that Defendants have designated these records as confidential pursuant to the Parties’ stipulated protective order. (See ROA 199.) Defendants shall have 30 days from notice of this ruling to file a Motion to Seal that includes a declaration and admissible

		evidence establishing each of the factors outlined in Cal. Rules of Court, Rule 2.550, subd. (d). The Clerk to give notice of this ruling.
6.	Wells Fargo Bank vs. Noble Ale Works Inc. 24-01428508	Motion to Deem Facts Admitted OFF CALENDAR. NTS FILED
7.	Harper vs. Wells 25-01532690	1. Demurrer to Complaint 2. Case Management Conference 3. Order to Show Cause re: Dismissal (Failure to Serve) <u>Defendant Erinn Wells' Demurrer to Plaintiff Donica Harper's Complaint</u> Defendant Erin Wells' unopposed demurrer to Plaintiff Donica Harper's Complaint is SUSTAINED. (Code Civ. Proc. §430.10, subds. (d) and (e).) In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) Questions of fact cannot be decided on demurrer. (<i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) Partition is an equitable action that is governed by statute. (Code Civ. Proc. § 872.010 et seq.) “ ‘ “[P]artition” is “the procedure for segregating and terminating common interests in the same parcel of property.” ’ [Citation.] It is a ‘ “ ‘remedy much favored by the law.’ ” ’ ” (<i>Summers v. Superior Ct.</i> (2018) 24 Cal.App.5th 138, 142.) “[P]artition, which is frequently denominated an absolute right [citation], is subject to waiver, and also to estoppel and similar equitable defenses.” (<i>Thomas v. Witte</i> (1963) 214 Cal.App.2d 322, 327.) The right of partition may be waived by contract, either express or implied

contract. (*LEG Investments v. Boxler* (2010) 183 Cal.App.4th 484, 493 (*LEG Investments*).)

The elements of a claim for partition are: (i) legal and common description of subject property; (ii) all interests the plaintiff has or claims in the property; (iii) all interests of record or actually known to the plaintiff in the property; (iv) the estate to which partition is sought; and (v) if plaintiff seeks sale of the property, facts justifying such relief in ordinary and concise language. (Code Civ. Proc., § 872.230.)

Pursuant to Code Civ. Proc. §872.210, subd. (a) “[a] partition action may be commenced and maintained by any of the following persons: (1) A co-owner of personal property; (2) An owner of an estate of inheritance ... in real property where such property or estate therein is owned by several persons concurrently or in successive estates.”

Pursuant to Code Civ. Proc. §872.510, “[t]he plaintiff shall join as defendants in the action all persons having or claiming interests of record or actually known to the plaintiff or reasonably apparent from an inspection of the property, in the estate as to which partition is sought.”

The Court has taken judicial notice of the fact that the record holder of title to the subject property is 4 Aspen Family, LLC.

Plaintiff alleges in the Complaint that the deed conveying an interest in subject property to 4 Aspen Family, LLC is void ab initio because the entity did not exist at the time of recordation.

Even if this allegation is credited, 4 Aspen Family, LLC is a “person[] having or claiming interests of record” in the subject property and must be joined in this action.

Moreover, the court has taken judicial notice of facts that directly contradict the allegations underlying Plaintiff’s conclusion that the deed conveying title in the subject property to 4 Aspen Family, LLC is void ab initio. Namely, the public records of the California Secretary of State indicate that 4 Aspen Family, LLC was organized on 6/6/23, which is 17 days before the deed conveying the Parties’ interest in the subject property to 4 Aspen Family LLC, was dated.

Thus, based upon judicially noticeable facts, Plaintiff is not a person who may commence and maintain a partition action of the subject property pursuant to Code Civ. Proc. §872.210, subd. (a).

Accordingly, Plaintiff cannot, as a matter of law, establish a right to partition and thus, the demurrer is SUSTAINED.

Defendant Erinn Wells' Request for Judicial Notice

Defendant Erinn Wells' Request for Judicial Notice is GRANTED as to Exhibit A. (Evid. Code §452, subds. (c) and (h); see also *Friends of Shingle Springs Interchange, Inc. v. County of El Dorado* (2011) 200 Cal.App.4th 1470, 1480 [taking judicial notice of corporate filings with Secretary of State].)

The request for judicial notice is DENIED as to Exhibits B and C to the extent Defendant requests that the court take notice of the truth of any assertions in the court filings that make up Exhibits B and C. Additionally, the Court will not take judicial notice of the KKC operating agreement for 4 Aspen Family, LLC.

Additionally, the Court takes judicial notice of the grant deeds involving the subject property, dated 6/23/23, attached as Exhibits to the Complaint. (*Yuanova v. New Century Mortgage Corp* (2016) 62 Cal.4th 919, 924, fn. 1 [approving taking judicial notice of recorded real property records].)

Plaintiff shall have 30 days to file a First Amended Complaint.

The FAC should join the necessary parties (including any lien holders/mortgagees of the subject property). Even if Plaintiff cannot state a cause of action for partition, there is a possibility that Plaintiff could state a cause of action under a different theory, so Plaintiff shall be granted an opportunity to amend the Complaint. (See *JPMorgan Chase Bank, N.A. v. Ward* (2019) 33 Cal.App.5th 678, 684 [“If the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility amendment could cure the defect, a trial court abuses its discretion by denying leave to amend”].)

The Case Management Conference is CONTINUED to January 21, 2027, at 9:30 a.m. in Department C12. The OSC re: Dismissal (Failure to Serve) is DISCHARGED.

Defendant shall provide notice of this ruling.

8.	Winster Investment, Inc. vs. Pureco USA LLC 25-01520180	1. Demurrer to Cross-Complaint 2. Motion to Strike Portions of Cross-Complaint 3. Case Management Conference Plaintiff/Cross-Defendant Winster Investment, Inc.’s demurrer to Defendant/Cross-Complainants Pureco USA, LLC and Eric Kondarovskis is SUSTAINED as to the Fifth, Sixth and Seventh Causes of Action and otherwise OVERRULED. (Code Civ. Proc. §430.10, subd. (e).) <u>First, Second, Third, and Fourth Causes of Action</u> Cross-Defendants argue that each of the first through fourth causes of action fail to state facts sufficient to constitute a cause of action because the terms of the lease that Cross-Complainant seeks to enforce in the First through Fourth causes of action clearly provides that the duty to repair the damage that led to the loss of electrical power to the premises was Cross-Complainant’s. The Court has assessed the various provisions of the subject lease agreement and finds that the provisions are capable of several reasonable interpretations, including the interpretation Cross-Complainant has set forth in the Cross-Complaint. In assessing a pleading against a demurrer, the court must construe an exhibit capable of various interpretations in the manner suggested in the challenged pleading. (See <i>SC Manufactured Homes, Inc. v. Liebert</i> (2008) 162 Cal.App.4th 68, 83.) Accordingly, the Court finds that it would be inappropriate to accept Cross-Defendant’s preferred reading of the lease for purposes of an attack on the pleadings. <u>Fifth Cause of Action – Negligence</u> The economic loss doctrine bars tort claims that arise from a breach of contract unless the plaintiff shows that the claim is independent of the contractual duty. (See <i>Robinson Helicopter Co., Inc. v. Dana Copr.</i> (2004) 34 Cal.4th 979, 989-990. [Tort damages are only permitted in contract cases where duty is completely independent of contract or claims are based upon intentional tortious conduct.]) Here, the Cross-Complaint fails to allege a breach of duty that is independent of Cross-Defendant’s contractual duties. Rather, this cause of action is premised upon allegations that Cross-Defendant failed to perform its contractual duties to repair, or pay for repair, following an event of “Premises Partial Damage” in violation of ¶9.2 of the subject lease agreement. (See, e.g. Cross Complaint at ¶¶ 24-26; 33; and 36.) Cross-Complainant fails to identify a duty independent of the contractual duty as a basis for its claim of negligence.
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Accordingly, this cause of action, as alleged, is barred by the economic loss doctrine. Since there is a possibility Cross-Complainant could allege a breach of a duty independent of Cross-Defendant's contractual duties under the subject lease agreement, the Court finds that leave to amend is warranted.

Sixth Cause of Action – Fraud

To plead a legally sufficient cause of action for fraud, the pleader must allege (1) a misrepresentation; (2) the defendant's knowledge of the falsity of the misrepresentation; (3) intent to induce plaintiff's reliance on the misrepresentation; (4) actual reliance upon the misrepresentation; (5) causation; and (6) resulting damages. (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2005) 35 Cal.4th 979, 990.)

Fraud must be plead specifically to withstand a general demurrer. Thus, to state a legally sufficient cause of action for fraud, a plaintiff must plead specific facts that "show how, when, where, to whom, and by what means the representations were tendered." (*Hamilton v. Greenwich Investors XXVI, LLC* (2011) 195 Cal.App.4th 1602, 1614.) Moreover, to state a cause of action for false promise, Plaintiff must also specifically allege an intent, on the part of Defendants, not to perform the promise at the time it was made. (See *Gruber v. Gruber* (2020) 48 Cal.App.5th 529, 540 [elements of false promise].)

To this Court, Cross-Complainant has failed to allege the fraud cause of action to the required level of specificity. Cross-Complainant does not specifically allege the contents of any alleged false statement made upon which the cause of action is based. Furthermore, the Cross-Complaint fails to specify who made any such false representation, when it was made, and the means by which the representation was made.

Seventh Cause of Action – Declaratory Relief

To state a cause of action for declaratory relief, the pleader must allege "(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party." (*Lee v. Silveira* (2016) 6 Cal.App.5th 527, 546.)

Code Civ. Proc. §1060 provides the scope of subjects for which declaratory relief may be properly sought. Section 1060 provides in relevant part that "[a]ny person interested under ... a contract, or who

desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property, ... may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties ... including a determination of any question of construction or validity arising under the instrument or contract.”

To plead an actual controversy, a pleader may not rely upon allegations concerning past wrongs. (see *Cordoba Corp. v. City of Industry* (2023) 87 Cal.App.5th 145, 157 [“There is no basis for declaratory relief where only past wrongs are involved”]; see also *Gafcon, Inc. v. Ponsor & Associates* (2002) 98 Cal.App.4th 1388, 1403 [declaratory relief “operates prospectively, and not merely for the redress of past wrongs. It serves to set controversies at rest before they lead to repudiation of obligations, invasion of rights or commission of wrongs...”].)

Here, declaratory relief is not necessary or proper. The Cross-Complaint does not allege an ongoing ripe controversy that could serve as the proper subject of declaratory relief. Cross-Complainant’s tenancy has terminated. There is no controversy regarding an ongoing duty to repair any aspect of the premises. Cross-Complainant’s claim for declaratory relief is based entirely on seeking a declaration regarding the legal effect of allegations of past wrongdoing that serves as the basis of this lawsuit.

Cross-Defendant’s Motion to Strike Punitive Damages

In light of the ruling on the demurrer, the motion to strike punitive damages allegations is DENIED as MOOT.

Cross-Complainants have 30 days leave to file a First Amended Cross-Complaint.

The Case Management Conference is CONTINUED to January 21, 2027, at 9:30 a.m. in Department C12.

Cross-Defendant shall provide notice of this ruling.

9.	Dwivedi vs. Agatep 25-01529728	1. Demurrer to Cross-Complaint 2. Motion to Strike Portions of Cross-Complaint 3. Case Management Conference Plaintiff/Cross-Defendant Tathagat Dwivedi's Demurrer to Defendant/Cross-Complainant James Agatep's Cross-Complaint is SUSTAINED. The Court notes that the demurrer and motion to strike are not in compliance with Rule 2.108, which requires each line to be one and half spaced or double spaced and number consecutively. Plaintiff is urged to familiarize himself with the Rules of Court as well as the Code of Civil Procedure. "Mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation." (<i>Rappleyea v. Campbell</i> (1994) 8 Cal.4th 975, 984-985.) First Cause of Action – Breach of Contract Defendant's breach of contract claim is based on the allegation that Plaintiff breached the agreement by "refusing to permit demolition and insisting on a topper." However, the Defendant admits the City would not permit the construction of a wall with a topper. Therefore, the contract was legally impossible to carry out. Second Cause of Action – Defamation Civil Code § 47(b) provides an absolute privilege for publications made in any "official proceeding authorized by law." This privilege bars defamation claims based on reports to police or code enforcement, even if made with malice. (<i>Hagberg v. California Federal Bank</i> (2004) 32 Cal.4th 350.) Defendant's claims based on reports to the City and Police are barred as a matter of law. Third Cause of Action – IIED To state a cause of action for intentional infliction of emotional distress the conduct alleged must be "outrageous." Defendant alleges he suffered distress due to Plaintiff documenting the demolition. Exercising a legal right to document the destruction of the shard wall is not outrageous conduct.
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Fourth Cause of Action – Harassment

The cause of action appears in the caption but is missing from the body of the Cross-Complaint.

Fifth Cause of Action – Nuisance

A nuisance is a substantial and unreasonable interference with the use and enjoyment of land. (Civ. Code § 3479.) It requires an interference with the property itself (e.g., noise, odor, vibration). Defendant alleges "anxiety," "uneasiness," and an "uncomfortable environment" regarding his social standing with neighbors (XComplaint, ¶¶ 59–60). Social awkwardness or reputational harm is not a nuisance under the law.

Sixth Cause of Action – Declaratory Relief

Defendant's sixth cause of action for declaratory relief is duplicative of the relief sought in Plaintiff's Complaint, i.e., adjudication of the wall's legality. Thus, Defendant's cause of action is unnecessary.

Defendant's failure to oppose the demurrer may be treated as an implied concession to the merits of the same. (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20.) Additionally, the court may construe the absence of a memorandum as waiver of all grounds not supported. (CRC 3.1113(a).)

Based upon these grounds, the Court SUSTAINS the unopposed demurrer. Although the demurrer is unopposed, the Court finds that Plaintiff should be given an opportunity to cure the defects in the operative complaint that were raised by Plaintiff in the demurrer.

MOTION TO STRIKE

Plaintiff/Cross-Defendant Tathagat Dwivedi's Motion to Strike certain portions of Defendant/Cross-Complainant James Agatep's Cross-Complaint is GRANTED.

Plaintiff seeks to strike the following allegations from the Cross-Complaint related to punitive damages:

1. Paragraph 52 (Page 17): The phrase "...and punitive damages for the breach of contract."

		2. Paragraph 64 (Page 20, Prayer for Relief): The phrase "For punitive damages for breach of contract in the amount of \$26,250.00." 3. Paragraph 67 (Page 20, Prayer for Relief): The phrase "For punitive damages in an amount to be determined at trial." Code of Civil Procedure section 436 provides, "The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading, (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." "No claim for exemplary damages shall state an amount or amounts." (Code Civ. Proc. § 3295(e).) Moreover, Defendant has failed to allege facts or state a claim that supports an award of punitive damages. The motion is unopposed. The court may construe the absence of a memorandum as waiver of all grounds not supported. (CRC 3.1113(a).) Accordingly, the motion is GRANTED Thus, Defendant has 30 days leave to file First Amended Cross-Complaint. The Case Management Conference is CONTINUED to January 21, 2027, at 9:30 a.m. in Department C12. Clerk to give notice of this ruling.
10.	Kossoff vs. Hepner 23-01308009	Motion for Summary Judgment and/or Adjudication Defendant David D. Dearing, M.D.'s (Doe 1) Motion for Summary Judgment is GRANTED. Dr. Dearing has met his initial burden to show the plaintiffs' sole cause of action for wrongful death based on medical negligence has no merit. (See Code Civ. Proc., § 437c, subs. (a), (p)(2) [burden]; <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850-851 [burden]; <i>Quiroz v. Seventh Ave. Center</i> (2006) 140 Cal.App.4th 1256, 1263 [elements of a claim for wrongful death include, inter alia, the underlying tort]; <i>Johnson v. Superior Court</i> (2006) 143 Cal.App.4th 297, 305 [elements of medical negligence, standard of care]; <i>Chakalis</i>

	<i>v. Elevator Solutions, Inc.</i> (2012) 205 Cal.App.4th 1557, 1572 [causation]; see also Waxman Decl. ¶¶ 1-20.) Plaintiffs have not opposed this motion and have therefore failed to meet their shifted burden to demonstrate a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (p)(2) [burden].) Defendant to file and serve a Proposed Judgment by July 24, 2026. The Court now sets an OSC re: Compliance with Court Order (Proposed Judgment) for September 17, 2026, at 9:30 a.m. in Department C12. If the Judgment is submitted and approved timely, the hearing will be vacated, and no appearance will be necessary. Moving Party Defendant shall give notice.
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